



Kenya Institute of Primate Research (KIPRE)

Institutional data protection governance and compliance implementation Strategy

Retreat Concept note

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Introduction

As a national biomedical research institution, KIPRE generates, receives, analyses, stores, and shares large volumes of scientific, administrative, and personal data in the course of its research, laboratory, surveillance, and institutional operations.

These data are fundamental to the Institute's mandate and support research, service delivery, decision-making, reporting, and collaboration with local and international partners.

As KIPRE continues to expand its research portfolio and embrace digital transformation, the need for effective management of these data has become increasingly important.

Data must not only be available to support research and institutional operations but must also be accurate, secure, accessible, and managed consistently throughout their lifecycle.

Effective data governance provides the structures, policies, standards, and accountability mechanisms necessary to achieve these objectives. It enhances the quality and integrity of research data, improves operational efficiency, supports evidence-based decision-making, strengthens institutional accountability, and reduces legal, operational, and reputational risks associated with poor data management.

Data protection is a key component of this broader data governance framework. It ensures that personal and sensitive personal data are collected, processed, stored, shared, and disposed of in accordance with the Data Protection Act, 2019 and its subsidiary regulations. By embedding data protection within institutional data governance, KIPRE will strengthen public trust, meet its legal obligations, and establish a sustainable framework for responsible data management across all its functions.

Background

KIPRE has successfully been registered by the Office of the Data Protection Commissioner (ODPC) as both a Data Controller and a Data Processor.

In addition, the Director General has appointed a Data Protection Officer (DPO) to coordinate and oversee compliance with the Data Protection Act, 2019 within the Institute.

These milestones represent an important step towards strengthening institutional data governance. However, registration and appointment alone do not guarantee compliance.

Effective implementation requires clear governance structures, updated policies, standard operating procedures (SOPs), defined roles and responsibilities, staff capacity building, and coordinated participation across all directorates, divisions, programs, and projects.

Data protection is therefore an institutional responsibility that requires commitment from all functional areas of the Institute.

The next phase of implementation therefore requires KIPRE to establish the governance structures, implementation mechanisms, and institutional capacity necessary to operationalize compliance with the Data Protection Act, 2019.

The retreat will provide a platform for building institutional capacity, assessing the current state of compliance, reviewing existing governance instruments, identifying implementation priorities, and collaboratively developing the Institute's Data Protection Compliance Implementation Strategy and implementation work plan.

These outputs will provide the foundation for the data protection component of KIPRE's broader Institutional Data Governance Framework.

Justification

KIPRE processes substantial volumes of scientific, administrative, personal, and sensitive personal data through its biomedical research, laboratory services, surveillance programs, human resource management, finance, procurement, partnerships, and other institutional operations.

These data are critical institutional assets that support research excellence, evidence-based decision-making, regulatory reporting, and service delivery.

Their effective management requires coordinated governance structures that promote data quality, security, integrity, accessibility, interoperability, and compliance with applicable legal and regulatory requirements.

While KIPRE has made significant progress through registration with ODPC and the appointment of a DPO, these represent only the initial steps towards institutional compliance.

Achieving sustainable compliance with the Data Protection Act, 2019 requires the establishment of governance structures, harmonized policies, standard operating procedures, clearly defined roles and responsibilities, staff capacity building, and mechanisms for continuous monitoring and improvement.

A well-governed data environment will improve research integrity, facilitate secure collaboration with national and international partners, strengthen donor confidence, enhance regulatory compliance, and support evidence-based institutional planning.

The proposed retreat provides an opportunity to bring together key institutional stakeholders to assess KIPRE's current data protection maturity, identify compliance gaps and implementation priorities, review existing governance instruments, and develop a coordinated implementation strategy.

A participatory approach will promote institutional ownership, strengthen cross-functional collaboration, and facilitate consistent implementation of data protection requirements across all directorates, divisions, programs, and projects.

The proposed Data Protection Compliance Implementation Strategy will provide the framework for operationalizing compliance with the Data Protection Act, 2019 and will form the privacy and regulatory compliance component of KIPRE's broader Institutional Data Governance Framework envisaged under the Data Science and Analytics (DSAS) work plan 26/27 FY (Appendix 1.1).

Consequently, the retreat will complement, rather than duplicate, the proposed consultancy (DSAS work plan 2026/27) by establishing the institutional governance, compliance, and implementation arrangements required to support the development and long-term sustainability of the Data Governance Framework. The resulting implementation strategy will strengthen institutional accountability, improve research data

governance, enhance compliance with the Data Protection Act, 2019, and provide a coordinated framework for managing data as a strategic institutional asset.

Purpose

The purpose of the retreat is to strengthen institutional data protection governance and establish a coordinated framework for implementing the Data Protection Act, 2019 as part of KIPRE's broader Institutional Data Governance Framework.

Objectives

The specific objectives are to:

- i. Strengthen institutional understanding of the Data Protection Act, 2019 and its practical implementation.
- ii. Assess KIPRE's current data protection governance and compliance status.
- iii. Review and harmonize KIPRE's Data Management and Protection Policy with the Data Protection Act, 2019 and current institutional governance arrangements.
- iv. Develop institutional standard operating procedures, templates and compliance tools to support implementation.
- v. Identify institutional risks, compliance gaps, priorities, and resource requirements.
- vi. Establish a network of Data Protection Champions representing key functional areas of the Institute.
- vii. Develop and validate the KIPRE Data Protection Compliance Implementation Strategy.
- viii. Develop a costed implementation work plan with clear responsibilities and timelines.

Proposed participants

The retreat will bring together representatives from:

1. Office of the Director General
2. Research Directorates and Programs
3. Human Resource and Administration
4. Information Communication Technology
5. Finance
6. Procurement
7. Planning and Strategy
8. Internal Audit
9. **Quality Assurance**
10. Records Management / Registry
11. Corporate Communications
12. Monitoring and Evaluation
13. Legal (where applicable)
14. Laboratory Services

15. Data Protection Champions from each directorate or division

Resource persons will be invited from the Kenya School of Law, ODPC and/or other relevant institutions, subject to availability.

Approaches

The retreat will be conducted through a combination of:

1. Presentations by resource persons.
2. Review of the Data Protection Act, 2019 and related regulations.
3. Policy review and harmonization.
4. Institutional compliance assessment.
5. Group discussions by functional area.
6. Plenary sessions.
7. Collaborative drafting of the implementation strategy.
8. Validation of proposed implementation activities and priorities.

Expected outcomes

The retreat is expected to produce:

- A validated KIPRE Data Protection Compliance Implementation Strategy.
- A costed implementation work plan.
- A network of Data Protection Champions.
- An institutional data protection compliance gap assessment.
- A revised draft KIPRE Data Management and Protection Policy aligned with the Data Protection Act, 2019 and current institutional governance arrangements.
- Priority actions for strengthening institutional data protection governance.
- Enhanced staff capacity on data protection compliance.

Duration and venue

The retreat is proposed to take place over Six (6) days at a suitable venue to allow adequate time for technical discussions, group work, and strategy development.

Budget

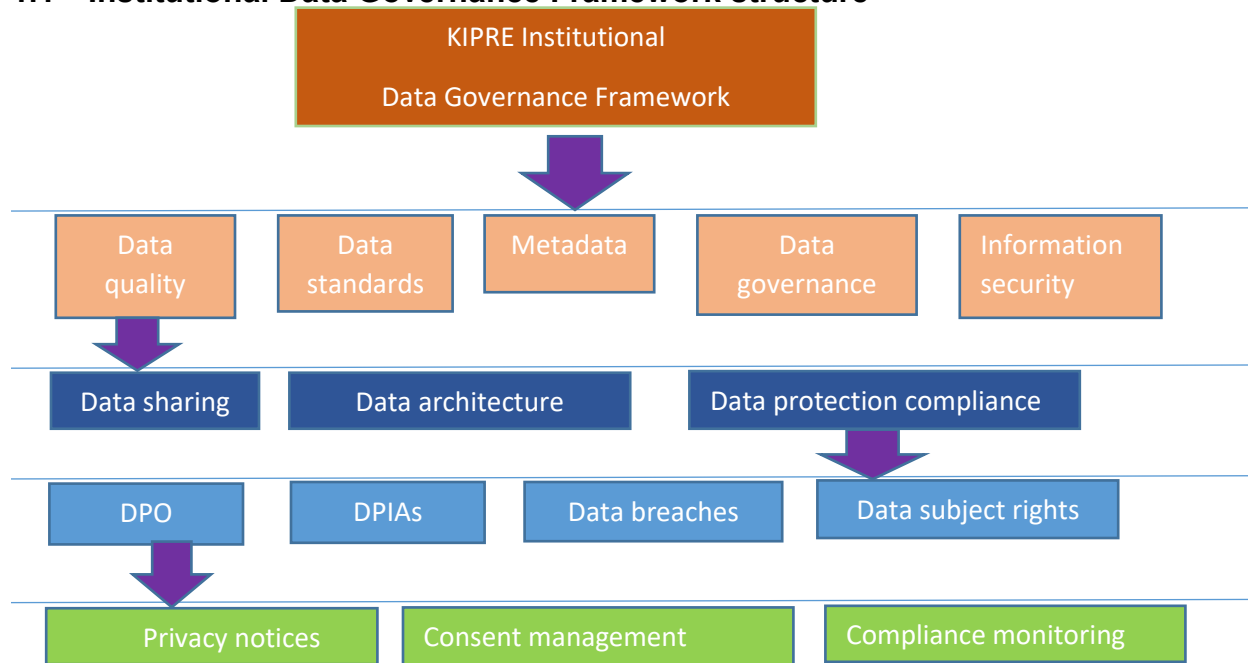
A detailed budget is provided separately to cover venue costs, accommodation, conference facilities, meals, transport, facilitation, stationery, printing of workshop materials, and other logistical requirements.

Recommendation

Management is requested to approve the proposed retreat and facilitate the necessary resources to enable the development of KIPRE's Data Protection Compliance Implementation Strategy and strengthen institutional data protection governance.

Appendices

1.1 Institutional Data Governance Framework structure



1.2 Implementation Roadmap (Sequentially)

- ✓ Current state
- ✓ Institutional compliance assessment
- ✓ Review and harmonization of the Data Management and Protection Policy
- ✓ Development of the Data Protection Compliance Implementation Strategy
- ✓ Development of the Costed Implementation Work Plan
- ✓ Management Approval
- ✓ Implementation
- ✓ Monitoring, Evaluation and Continuous Improvement

1.3 Data Governance Structure (Sequentially)

- ✓ Director General
- ✓ Data Protection Officer
- ✓ Data Protection Steering Committee
- ✓ Data Protection Champions
- ✓ Directorates / Divisions / Projects